LARKSPUR HEALTH PARTNERS, INC.

MINUTES OF A SPECIAL MEETING OF THE BOARD OF DIRECTORS

Date: Thursday, March 20, 2025
Time: 4:00 p.m. (Eastern)
Place: Board Room, 400 Tillary Court, Brooklyn, New York, and by videoconference

Directors present: Margaret Lindqvist (Chair); Dr. Celia Fontaine (President and Chief Executive Officer); Sunita Varadarajan; Leon Abernathy; Gerald Pomeroy; Harold Nakamura

Directors absent: Dr. Raymond Ibsen

Correction - G. Pomeroy did NOT attend (excused, travelling). Dr. R. Ibsen present by telephone from 4:20 pm. Attendance c

Also present by invitation: Lionel Marchbanks, General Counsel; Paul Kowalczyk, Chief Financial Officer; Annette Rhee, Privacy Officer; Tomasz Wierzbicki, Chief Information Security Officer; Alice Moreno and Kenji Arai of Calder & Wynne LLP (by videoconference); Beatrice Nolan, Corporate Secretary, who acted as secretary of the meeting.

1. **CALL TO ORDER; NOTICE; QUORUM**

The Chair called the meeting to order at 4:04 p.m. The Secretary confirmed that notice of the meeting had been given to all directors on March 14, 2025 in accordance with Article III, Section 3.5 of the By-laws, and that a quorum (a majority of the whole Board) was present.

2. **VENDOR SECURITY INCIDENT — REPORT OF MANAGEMENT**

The Chair noted that the discussion under this item was held at the request of, and for the purpose of obtaining legal advice from, the General Counsel and outside counsel, and is privileged. Only a summary is recorded.

Mr. Wierzbicki reported that on Monday, March 10, 2025, at approximately 4:15 p.m., he had received a telephone call from Nadia Okafor, Director of Information Security of Ostrander Billing Solutions LLC ("Ostrander"), the Company's revenue-cycle vendor, informing him that Ostrander had suffered a ransomware attack beginning on Sunday, March 9, 2025, and that its billing platform was unavailable. The platform was restored on March 13, 2025. Mr. Wierzbicki reported that there was no evidence that the Company's own systems had been compromised.

Mr. Marchbanks reported that Ostrander's written notice was received by email on Friday, March 14, 2025, and summarized its contents. He noted that under the Master Services Agreement, as amended in 2023, Ostrander was required to give written notice within forty-eight (48) hours after discovery. He reported that he had engaged Calder & Wynne LLP under an engagement letter dated March 13, 2025, and that Calder & Wynne had retained Cobaltline Forensics LLC on March 17, 2025 to investigate on the Company's behalf.

Ms. Rhee reported that the number of affected patients was not yet known and that the HIPAA breach risk assessment was in progress. Mr. Kowalczyk reported on the claims backlog and the expected short-term effect on collections.

Ms. Moreno summarized the Company's notification obligations, its contractual rights against Ostrander, and the importance of preserving documents. Discussion followed. Dr. Ibsen joined the meeting by telephone at 4:20 p.m. during this item.

3. **FORMATION OF SPECIAL COMMITTEE**

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Upon motion duly made and seconded, the Board adopted the following resolutions at 4:52 p.m., with all six directors present voting in favor:

RESOLVED, that a Special Committee on the Ostrander Data Security Incident (the "Special Committee") is hereby established, consisting of Sunita Varadarajan (Chair), Leon Abernathy and Harold Nakamura;

RESOLVED FURTHER, that the Special Committee is authorized, on behalf of the Company, to oversee the investigation of the incident; to direct outside counsel and, through counsel, any forensic firm; to approve notifications to patients, regulators and others; to oversee the Company's claims against Ostrander and any communications with the Company's insurers; and to approve expenditures in connection with the foregoing of up to USD 350,000 in the aggregate without further approval of the Board;

RESOLVED FURTHER, that the Special Committee shall report to the Board not less than every two weeks until the Board determines otherwise;

RESOLVED FURTHER, that the engagement of Calder & Wynne LLP under its engagement letter dated March 13, 2025, and the retention of Cobaltline Forensics LLC through Calder & Wynne LLP on March 17, 2025, are hereby ratified, confirmed and approved;

RESOLVED FURTHER, that management is directed to issue and maintain a document preservation notice to all personnel who may hold documents relating to the incident or to Ostrander; and

RESOLVED FURTHER, that the General Counsel is directed to provide notice of the incident to the Company's cyber insurance carrier as soon as practicable, and to report to the Special Committee when notice has been given.

4. **OTHER BUSINESS**

There was no other business.

5. **ADJOURNMENT**

There being no further business, the meeting was adjourned at 5:18 p.m.

Respectfully submitted,

Beatrice Nolan
Corporate Secretary

Approved as corrected - Board meeting 4/17/25. BN

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